

13. S-PR-0013766 In Re the Matter of Nishikida, Michiko

Petition for attorney fees is recommended for approval as prayed.

14. S-PR-0013781 In Re the Estate of Brar, Premjeet

Petition to administer estate (B Sohi)

In light of the reported death of petitioner, it is recommend the pending petition to administer estate (B Sohi) be dropped from calendar.

Petition to administer estate (J Brar)

Missing proof of publication of notice of hearing.

Missing required allegations at ¶ 5a(3)–(4) (RDP) and (7)–(8) (issue of predeceased child(ren)).

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until the Duties form is filed. C.R.C. 7.150.

15. S-PR-0013782 In Re the Estate of Sohi, Puneet

In light of the reported death of petitioner, it is recommended the pending petition to administer estate (B Sohi) be dropped from calendar.

16. S-PR-0013961 In Re the Hammack Liv. Trust

Appearance is required for continued hearing on petition to determine trust property.

It is again recommend the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. The writing relied on by petitioner does not describe the subject property. Nor is the subject property described elsewhere in the trust or in either trust restatement. The fundamental facts of *Heggstad* were the identifying description of the property in the trust documents ("All the trust property was identified in a document titled schedule A;" although "misabeled," there was "no dispute as to the nature of the decedent's interest in this [described] property") and the declaration that "the property described in schedule A" was transferred to Mr. Heggstad as trustee." *Heggstad*, supra, at 946–947. It was that "written declaration of trust" that was upheld by the court. Id. at 950.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90. *Kucker* concerned only transfer of personal property to a trust, not transfer of real property to a trust. *Id.* at 92 & 95. *Kucker's* discussion of the effect of general assignment as to real property is merely dicta.

Nor is relief available under *Ukkestad*, *supra*. *Ukkestad* concerned real property owned by settlor at the time the funding writing was executed, as petitioner concedes: the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property. It does not hold that later-acquired real property can be automatically funded to a trust where settlors have taken title contrary to the trust. Petitioner's supplemental argument notes that there no holding prohibiting successful use of an after-acquired-property writing. This is unsurprising, as the case did not involve any such question, but it also provides no basis to extend *Ukkestad's* holding far beyond the facts of the case.

Petitioner cites three additional cases, *Bumb v. Bennett* (1958) 51 Cal.2d 294, 302; *Brusseau v. Hill* (1927) 201 Cal. 255; and *Pettigrew v. Dobbelaar* (1883) 63 Cal. 396.

Bumb concerned the validity of an assignment of real property by a partnership against a claim to the same property by a levying creditor. It has no apparent application to this proceeding and petitioner offers no explanation for why it was cited.

Brusseau v. Hill concerned an inter vivos transfer of property *contemporaneously owned and possessed* by grantor at the time he gave grantee a writing purporting to make a gift of the property, together with keys and immediate possession.

Pettigrew's holdings are also limited to contemporaneously owned property. The case concerned two deeds. The first described real properties by map number and lot numbers; the second, as "all lands and real estate belonging to the [grantee]." As to the second deed, the California Supreme Court tersely held: "If the lands in controversy *belong to* [grantor] they passed by the deed" *Pettigrew*, *supra*, at 397 (emphasis in original).

Relief also cannot be granted on the basis of the pourover will. Petitioner initially argued the court should grant relief to allow petitioner to avoid "unnecessarily expensive, time-consuming, . . . waste[ful]" probate which would involve "considerable and disproportionate time and expense" (Petition, ¶ 10); petitioner has now clarified that she "does not rely on the pourover will" for this petition (Supplement, II.d).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

17. S-PR-0013969 In Re the Michael and Eva Gress Rev. Trust

Petition to modify irrevocable trust is recommended for approval as prayed.